

approval of each of the other Defendants.” (*Id.* at ¶ 14.) These allegations were insufficient to appraise Ms. Rodriguez of the demand against her or plead any cognizable basis for the imposition of liability upon her for the pleaded breach of contract claims.

Despite some broad references to “Defendants, and each of them,” the more specific allegations of the complaint (and its attachments) reflect that the “numerous written contracts” were with “A.K.D. Management Inc” who “agreed to act as the Prime or General Contractor.” (See Complaint, ¶9.) The other causes of action expressly pled that the corporate defendant (and arguably defendant Mejia) were the parties that entered into the subject contract. (See Complaint, ¶¶11 and 25.) It is notable that Exhibit 1 to the Complaint plainly reflects the contracts having been made with “AKD Management,” consistent with the specifically pleaded allegations:

THIS AGREEMENT is made this _____ 15th day of Jul , 2023, between Angel's Excavation & Earthwork, hereinafter called the Subcontractor and _____ AKD Management Ink _____, hereinafter called the Prime.

(Complaint, Exhibit 1 [one of multiple attached forms of contract with similar provisions].)

The same is true of the attached loan agreement:

THIS LOAN AGREEMENT (this “Agreement”) dated this 3 day of 10, 2023

Borrower: A.K.D. Management Inc. (Allan Francisco Mejia, Owner), with Address at: 2526 Shadowbrooke Rd, Brentwood, CA 94513, USA. EIN: 47-3299861, Entity No. 3762646
(The “Borrower”)

(Complaint, Exhibit 2.)

Accordingly, the motion is **GRANTED**.

10. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
***HEARING ON MOTION IN RE: LEAVE TO FILE A 3RD AMENDED COMPLAINT**
FILED BY: MARKER, TANIA
TENTATIVE RULING:

Plaintiff Tania Marker (“Plaintiff”) filed a Motion for Leave to An Amended Complaint on January 23, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026.

Since the motion filing, Plaintiff was granted leave regarding the filing of a Third Amendment as part of case management proceedings. See Order entered March 13, 2026.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is MOOT and OFF-CALENDAR.

11. 9:00 AM CASE NUMBER: C24-03382
CASE NAME: LAURIAN STUDEVILLE VS. ANTHONY PANTUSO
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE A CROSS-COMPLAINT**
FILED BY: KORZH, DMYTRO
TENTATIVE RULING:

Defendants Viktoriia Korzh and Dmytro Korzh (“Defendants”) filed a Motion for Leave to File a Cross-Complaint on January 27, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The unopposed Motion for Leave to File is GRANTED. Defendants are granted leave to file the proposed Cross-Complaint herein. Such Cross-Complaint shall be filed and served **within ten (10) days of notice of entry of this order**.
2. The parties shall mediate the claims in the Cross-Complaint along with plaintiffs’ claims pursuant to the prior CMC issued herein.
3. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-00212
CASE NAME: K. S. VS. COUNTY OF CONTRA COSTA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: COUNTY OF CONTRA COSTA
TENTATIVE RULING:

Before the Court is Defendant County of Contra Costa’s Demurrer to Complaint. The Complaint alleges a single cause of action for negligence based on Government Code sections 815.2, 815.4, and 815.6.

Factual Allegations

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. In approximately January 2002, Plaintiff was placed in a foster home owned, operated, and managed by non-moving Defendant Wesley Group Home, Inc. (¶ 26.) The foster home was licensed and overseen by the County. (*Ibid.*) Later that year, Plaintiff was transferred to a group home also operated by Defendant Wesley. (*Ibid.*)

In approximately 2002, Plaintiff was sexually abused and assaulted by an adult staff member of the Facility, when Plaintiff was seventeen years old. (¶ 27.) The abuse occurred regularly over the period of several months. (¶ 28.) It is alleged that Defendants observed, or should have observed, signs that